

HERMES LOGISTICS LLC

CARRIER ADMINISTRATIVE & DISPATCH SUPPORT AGREEMENT

*One clear operating path.***60-second business summary**

Non-exclusive support. No minimum load volume. The Carrier approves every load and keeps control of drivers, equipment, safety, routes, and final decisions. Freight funds are paid directly to the Carrier or its factor. The service fee is written in Appendix A for the specific Carrier - the master agreement does not contain a fixed percentage.

PARTIES AND SELECTED COMMERCIAL TERM

Service Provider	Hermes Logistics LLC hermeslogisticsus.com
Carrier legal name	_____
MC / USDOT	MC _____ USDOT _____
Carrier website	_____
Service fee	_____ % of linehaul, as confirmed in Appendix A

WHAT THIS AGREEMENT DOES

- Appoints Hermes as a limited, non-exclusive administrative and dispatch support agent for the Carrier.
- Allows Hermes to research opportunities, communicate and negotiate within Carrier instructions, prepare paperwork, and coordinate administrative steps.
- Does not transfer operating authority, safety responsibility, freight ownership, or final decision-making to Hermes.
- Does not authorize Hermes to act as a broker, re-broker freight, collect freight charges, or bind the Carrier to a load without approval.

Draft status

This v3 document is a business and design draft prepared for Wisconsin transportation counsel review. It must not be presented as an attorney-approved execution agreement until Hermes publishes an approved version and matching file hash.

APPOINTMENT, AUTHORITY, AND CONTROL

The Carrier keeps the operation. Hermes supports the workflow.

1.1 Limited appointment

The Carrier appoints Hermes as a limited, non-exclusive agent solely to provide the administrative and dispatch support services selected in Appendix A. Hermes may act only within the Carrier instructions, this Agreement, and applicable law.

1.2 Carrier approval is required

- The Carrier may accept or reject every load, rate, broker, shipper, route, pickup, delivery, and material operating term.
- Hermes may not bind the Carrier to transportation without approval through an agreed communication method.

1.3 Carrier remains in control

- The Carrier exclusively controls drivers, equipment, maintenance, safety, hours of service, insurance, permits, routing, scheduling, cargo handling, and compliance.
- The Carrier verifies that each shipment is lawful, safe, within authority, insurable, and operationally acceptable.

1.4 No brokerage or re-brokering

Hermes is not appointed to arrange transportation for the public as a broker or freight forwarder. Hermes will not re-broker freight, hold itself out as the transporting motor carrier, collect freight charges, or exercise discretion inconsistent with a bona fide carrier agent relationship.

1.5 Non-exclusive; no minimums

The Carrier may self-dispatch or use other providers. Neither party guarantees or requires minimum loads, miles, revenue, trucks, or service hours.

Carrier-control promise

No load moves because Hermes wants it. A load moves only after the Carrier approves it and remains able to perform it safely and lawfully.

SERVICES AND OPERATING PROCESS

Clear scope, clear handoff, no hidden transfer of responsibility.

2.1 Services Hermes may provide

- Market and load research; opportunity screening; rate and term discussion within Carrier instructions.
- Communication with brokers, shippers, dealers, auction facilities, and counterparties as the Carrier administrative contact.
- Rate-confirmation, carrier-packet, proof-of-delivery, invoice, and ordinary document coordination.
- Lane, deadhead, scheduling, and carrier-development research when selected in Appendix A.

2.2 Services Hermes does not provide

- Hermes does not transport, load, secure, store, inspect, insure, repair, or take custody of cargo or equipment.
- Hermes does not provide legal, tax, insurance, safety, factoring, or regulatory advice.
- Hermes does not receive freight proceeds without a separate lawful written authorization for a specific workflow.

2.3 Load confirmation

A rate confirmation, dispatch sheet, email, text, recorded business call, portal confirmation, or other agreed record may document Carrier approval.

2.4 Credentials and private documents

Passwords, PINs, recovery codes, API keys, W-9s, CDL images, bank details, VIN lists, release documents, and shipment records must not be entered into the public signing page.

2.5 No guaranteed result

Hermes does not guarantee a load, rate, mileage, lane, customer, booking, payment, response time, fuel cost, profit, gross revenue, or any other business outcome.

Freight payments

Brokers, shippers, dealers, or factoring companies pay the Carrier or its factor directly. Hermes earns only the service fee in Appendix A.

FEES, INVOICES, AND PAYMENT

The master stays flexible; the exact percentage lives in Appendix A.

3.1 Service fee

The Carrier pays the percentage written in signed Appendix A. Unless Appendix A says otherwise, it applies to linehaul actually earned on loads booked or materially arranged through Hermes, excluding separately stated pass-through charges, advances, and reimbursements.

3.2 Weekly statement and due date

Hermes may issue a weekly statement identifying loads and calculation. The invoiced amount is due within seven calendar days unless Appendix A states another schedule.

3.3 Good-faith invoice review

The Carrier sends a specific written objection within five business days, identifying the disputed load and reason. Undisputed amounts remain due. Fraud, duplicate billing, and clear mathematical errors remain correctable.

3.4 Late amounts

An undisputed overdue amount may accrue the lesser of 1.5% per month or the maximum lawful rate. Hermes may pause new work after reasonable notice.

3.5 Collection costs

After notice and a reasonable cure opportunity, the Carrier is responsible for reasonable, documented collection costs and attorney fees to the extent permitted or awarded. No personal guaranty, blanket lien, UCC interest, automatic card debit, or confession of judgment is created.

3.6 Optional direct-payment instruction

Only through separate written Carrier authorization, and only when allowed by the counterparty, factor, contract, and law, the Carrier may direct payment of a specifically identified undisputed Hermes fee. This clause alone does not transfer freight receivables.

No surprise percentage

The master leaves the percentage blank. The exact rate must appear in Appendix A and the immutable package shown to the signer.

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TERM, TERMINATION, AND RESPONSIBILITIES

Easy to start, clear to stop, responsibilities remain where they belong.

4.1 Start and term

This Agreement begins when both parties sign an approved execution version and Appendix A. It continues until terminated.

4.2 Termination without cause

Either party may terminate on seven calendar days written notice. The Carrier may immediately stop accepting new opportunities. Ordinary follow-up for approved loads may continue unless instructed otherwise.

4.3 Immediate suspension or termination

Either party may act immediately for material breach, fraud, unsafe or unlawful instructions, inactive authority, inadequate insurance, nonpayment of undisputed amounts, credential misuse, harassment, sanctions concerns, or serious compliance risk.

4.4 Amounts surviving termination

Termination does not erase fees properly earned before termination, confidentiality duties, audit records, disputes, or obligations intended to survive.

4.5 Carrier representations

- Maintain required authority, registrations, insurance, equipment, personnel, and qualifications.
- Provide accurate business information and an authorized signer.
- Do not ask Hermes to misrepresent authority, identity, equipment, insurance, capacity, location, or shipment status.

4.6 Hermes responsibilities

- Use commercially reasonable care and follow lawful Carrier instructions.
- Maintain reasonable records and avoid knowingly misrepresenting the Carrier.
- Protect private business information subject to service, security, payment, and legal needs.

Simple exit

The agreement is not designed to trap the Carrier. Either party may end the relationship with notice, while completed work and earned fees are reconciled.

RISK, CONFIDENTIALITY, AND LEGAL TERMS

Balanced protections without personal guarantees or hidden control.

5.1 Independent businesses

The parties are independent contractors. Nothing creates employment, partnership, joint venture, franchise, ownership interest, or authority beyond the limited agency stated here.

5.2 Confidentiality and data

Each party uses non-public business information only for the relationship, protects it with reasonable care, and discloses it only as needed or legally required. Electronic records may be retained in accurate, reproducible form.

5.3 Third parties

Brokers, shippers, dealers, load boards, factors, insurers, repair providers, and other third parties are independent. Hermes is not responsible for their acts, insolvency, systems, decisions, or payment failures except to the extent caused by Hermes breach or misconduct.

5.4 Limitation of liability

To the maximum lawful extent, neither party is liable for indirect, special, punitive, or consequential damages. Hermes aggregate liability will not exceed service fees paid during the thirty days preceding the claim, except for fraud, willful misconduct, confidentiality breach, or liability that cannot be limited.

5.5 Indemnity

Each party indemnifies the other from third-party claims to the extent caused by its own negligence, willful misconduct, legal violation, breach, or allocated responsibility. Transportation, cargo, driver, equipment, safety, and regulatory risks remain Carrier responsibilities.

5.6 Governing law and venue

Wisconsin law governs. Subject to mandatory law, state and federal courts serving Ozaukee County, Wisconsin have exclusive venue. Lawful court rights are not waived.

5.7 Notices and electronic signatures

Notices may be sent to designated business channels. The parties consent to electronic records and signatures when they affirmatively choose the process and can access and retain the documents.

5.8 Entire agreement; order

The approved master, signed Appendix A, and signed amendments form the agreement. A later amendment controls, then Appendix A for fee and scope, then the master. Sales messages do not amend signed documents.

SIGNATURES AND APPENDIX A

The exact service model and percentage are confirmed here.

Execution gate

Sign only the approved execution version supplied through the secure Hermes process. Compare the document version and SHA-256 shown in the signing record before final execution.

SIGNATURES

HERMES LOGISTICS LLC _____ Authorized signer _____ Title _____ Signature / date	CARRIER _____ Authorized signer _____ Title _____ Signature / date
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APPENDIX A - SELECTED SERVICES AND COMMERCIAL TERMS

Carrier legal name	_____
MC / USDOT	_____
Company website	_____
Service model	☐ Dispatch Support ☐ Operations + Growth ☐ Custom
Service fee	_____ % of linehaul
Billing schedule	Weekly statement; due within _____ days
Selected services	_____
Carrier approval channel	☐ SMS ☐ Email ☐ Recorded call ☐ Portal ☐ Other
Hermes representative / offer code	_____
Special terms	_____

Appendix confirmation: the selected model, fee, approval channel, and special terms form part of the Agreement.